

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF VENTURA**

**Tentative Ruling**

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**2025CUNP037994: THOMAS C. KURT, et al. vs MICHELLE BELLINI, et al.  
09/24/2026 in Department 42  
Motion for Preliminary Injunction**

**Motion:** Plaintiff's Motion for Preliminary Injunction (*Opposed*)

**Tentative Ruling:**

Defendants' evidentiary objections to the Declaration of Jake R. Cohen:

Objection Nos. 1, 2, 4-10, and 12 are SUSTAINED.

Objection No. 3 is SUSTAINED as to amounts that "remained in cash" and otherwise  
OVERRULED

Objection No. 11 is SUSTAINED as to the assertion that the previously ordered \$30,000  
undertaking satisfies Code of Civil Procedure section 529. That undertaking was imposed  
under section 1030, not section 529.

Plaintiff Thomas C. Kurt's Motion for Preliminary Injunction is DENIED.

The Court previously determined, in connection with Defendants' motion to expunge the lis  
pendens, that Plaintiff established by a preponderance of the evidence the probable validity of his  
real-property claim.

The present motion raises a different question: whether Plaintiff has shown a sufficient present  
threat of irreparable interim harm to justify restraining identifiable proceeds of the \$450,000 loan  
pending trial.

Plaintiff has not made that showing. Defendants have presented competent evidence that the loan  
proceeds deposited into Michelle Bellini's Wells Fargo checking account were exhausted by the  
third quarter of 2025 and that the funds presently deposited into that account consist of Bellini's  
earnings and other funds rather than remaining loan proceeds. (Michelle Bellini Decl., ¶¶ 6-15,  
17.) Bellini further declares that approximately \$15,000 remains in lender-controlled tax and  
insurance impounds that she cannot withdraw. (*Id.*, ¶ 6.) Although Plaintiff identifies substantial  
questions concerning the differences between Bellini's June 2026 declaration and her September  
2026 declaration, Plaintiff has not submitted evidence identifying any presently existing loan  
proceeds or traceable substitute property in Bellini's possession that could presently be  
restrained.

An injunction may preserve an identifiable fund potentially subject to a constructive trust where  
the evidence shows a realistic threat that the fund will be dissipated. (*Heckmann v. Ahmanson*  
(1985) 168 Cal.App.3d 119, 133-138.) It may not, however, require a defendant to replace  
already-spent loan proceeds with unrelated assets or effectively freeze a bank account to secure a

future monetary recovery. (*Doyka v. Superior Court* (1991) 233 Cal.App.3d 1134, 1136-1137.) On the evidence presently before the Court, an order restraining Bellini's existing checking account would risk reaching funds that have not been shown to constitute the loan proceeds or their traceable product.

The affirmative accounting and tracing provisions requested by Plaintiff also are not warranted. These provisions would require Bellini to identify financial accounts, produce account information, and account for the disposition of the proceeds. Such relief is mandatory rather than merely prohibitory. A preliminary mandatory injunction is disfavored and ordinarily is appropriate only in an extreme case in which the right to relief is clearly established. (*Teachers Ins. & Annuity Assn. v. Furlotti* (1999) 70 Cal.App.4th 1487, 1493.) The parties are presently pursuing discovery concerning the loan and its proceeds. The present motion does not establish grounds to substitute mandatory injunctive relief for that process.

The Court also does not consider Plaintiff's request, first stated in the reply, for an injunction "preserving the Subject Property and all remaining or presently traceable proceeds" to the extent that request expands the relief sought in the moving papers. The moving papers sought principally to restrain disposition of the remaining loan proceeds and to identify the account in which those proceeds were maintained. The Subject Property itself is already subject to Plaintiff's recorded *lis pendens*, and Plaintiff may not materially enlarge the requested preliminary relief for the first time in reply.

Because the motion is denied, no undertaking under Code of Civil Procedure section 529 is required.

Defendants' counsel to give notice.